

**Stipulated Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant
LPL Financial LLC

Case Number: 25-01420

vs.

Respondent
Elizabeth Espinal

Hearing Site: Jersey City, New Jersey

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Member vs. Associated Person

REPRESENTATION OF PARTIES

For Claimant LPL Financial LLC ("Claimant"): Gary M. Saretsky, Esq., Samuel P. Mauch, Esq., and Brooke Hochstein, Esq., Saretsky Hart Michaels + Gould PC, Birmingham, Michigan.

Elizabeth Espinal ("Respondent") appeared pro se.

CASE INFORMATION

Statement of Claim filed on or about: July 10, 2025.
Claimant signed the Submission Agreement: July 9, 2025.

Statement of Answer filed by Respondent on or about: September 5, 2025.
Respondent did not sign the Submission Agreement.

CASE SUMMARY

In the Statement of Claim, Claimant asserted the following causes of action: breach of Promissory Note dated October 8, 2020, and breach of Promissory Note dated May 27, 2021.

Respondent filed a Statement of Answer in which she did not contest the validity of the Promissory Notes and acknowledged her outstanding principal balance and interest owed to Claimant.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested an award (1) the principal balance due and owing under Note 1 of \$25,914.29; (2) accrued interest on Note 1 in an amount to be

determined at hearing; (3) per diem interest between in an amount to be determined at hearing; (4) principal balance due and owing under Note 2 of \$10,025.00; (5) accrued interest on Note 2 in an amount to be determined at hearing; (6) per diem interest between in an amount to be determined at hearing (7) the costs of collection and of the Arbitration proceeding, including attorneys' fees as agreed to under the terms of the Notes.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

Respondent did not file a properly executed Submission Agreement but is required to submit to arbitration pursuant to the Code of Arbitration Procedure ("Code") and having answered the claim is bound by the determination of the Arbitrator on all issues submitted.

On October 29, 2025, the parties filed a Motion for Entry of a Stipulated Award without a need for further hearings. On October 30, 2025, the Arbitrator granted the motion.

AWARD

The parties entered into an agreement to present to the Arbitrator a Stipulated Award. Now, in lieu of a hearing and upon motion of both parties for entry of a Stipulated Award, and the written stipulation thereto, the Arbitrator grants the motion and enters this Stipulated Award granting the following relief:

1. Respondent is liable for and shall pay to Claimant the sum of \$43,700.82 in compensatory damages less any payments received by LPL pursuant to a certain Settlement Agreement and General Release entered into between Claimant and Respondent.
2. Respondent is liable for and shall pay to Claimant interest accrued on Respondent's obligation under the Notes in the amount of \$8,113.39.
3. Respondent is liable and shall pay to Claimant interest in the amount of \$9.58 per day from the date of default of a certain Settlement Agreement and General Release entered into between Claimant and Respondent.
4. Respondent is liable for and shall pay to Claimant all costs and reasonable attorneys' fees incurred by Claimant in connection with enforcing this Stipulated Award including, but not limited to, any filing fees and costs.
5. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services will retain or collect the non-refundable filing fees* for each claim:

Initial Claim Filing Fee = \$ 1,450.00

**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm that employed the associated person at the time of the event giving rise to the dispute. Accordingly, as a party Claimant is assessed the following:

Member Surcharge = \$ 975.00
Member Process Fee = \$ 2,275.00

The Arbitrator has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator, including a pre-hearing conference with the Arbitrator, which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session @ \$450.00/session = \$ 450.00
Pre-Hearing Conference: October 27, 2025 1 session

Decision on the papers: = \$ 300.00

Total Hearing Session Fees = \$ 750.00

The Arbitrator has assessed \$375.00 of the hearing session fees to Claimant.

The Arbitrator has assessed \$375.00 of the hearing session fees to Respondent.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Edward W. Morris, Jr.

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Edward W. Morris, Jr.

Edward W. Morris, Jr.
Sole Public Arbitrator

11/19/2025

Signature Date

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November 19, 2025

Date of Service (For FINRA Dispute Resolution Services use only)